

EX 2519/2023

Case called out.

Counsel for DHR twice called out, absent.

Upon perusal of order sheet, it is noticed that, on the earlier dates of hearing, the counsel for DHR was directed to take steps against JDR for the issuance of attachment warrant of movables.

Despite providing multiple opportunities, the DHR has failed to take proper steps against Jdr in order to effectively execute the decree.

In view of the judgment of Hon'ble Supreme Court of India in Periyammal (Dead) through LRs & Ors. Vs. V. Rajamani & Anr. in Civil Appeal Nos. 3640-3642/2025, wherein the Apex Court, by order dated 06.03.2025 and in compliance of the circular No.2/2025 dated 01.04.2025 issued by the Hon'ble High Court of Karnataka mandating the disposal of execution petitions within 6 months, this Court is duty bound to prevent undue pendency of the execution petitions.

Since the DHR has not diligently pursued the execution and no purpose would be served in keeping the petition pending further, the execution petition deserves to be disposed of.

Accordingly, the execution petition is dismissed for non prosecution.

The decree-holder is at liberty to take appropriate steps in accordance with law.

Office is directed to return the copy of decree to the counsel for DHR upon verification and identification.

06.08.2026

**XXXIV ACC & SJ., & Spl. Judge,
(NDPS), Bengaluru. (CCH-35)**